

9:00 AM

Line 6

25-CIV-02842      JON ROMERO, ET AL VS. NORTH CAL SECURITY INC., ET AL

JON ROMERO  
NORTH CAL SECURITY INC.

JOSHUA I WHITE  
ADOLFO MEDIANO

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Defendants' Motion to Quash Service of Summons; Motion to Set Aside Clerk's Default and Default Judgment, Request for Sanctions

**TENTATIVE RULING:**

Defendants North Cal Security, Inc.'s and Dennis R. Mediano, Sr.'s Motion to Quash Service of Summons and Motion to Set Aside Clerk's Default and Default Judgment is GRANTED in part and DENIED in part.

Defendants North Cal Security, Inc.'s and Dennis R. Mediano, Sr.'s Request for Judicial Notice is GRANTED.

As a preliminary matter, Defendants North Cal Security, Inc. and Dennis R. Mediano, Sr. have failed to electronically bookmark the exhibits submitted in support of the motion, in violation of the California Rules of Court. (See Cal. Rules of Court, rule 3.1110(f)(4).) All parties are advised that further violations of the California Rules of Court are subject to sanction. (See *id.*, at rule 2.30.)

On September 12, 2025, the clerk entered the defaults of Defendants North Cal Security, Inc. ("North Cal") and Dennis R. Mediano, Sr. The default judgment against them was subsequently entered on February 10, 2026. Here, North Cal and Mediano seek to set aside the defaults and default judgment on the grounds that they are void for lack of jurisdiction. (See Code Civ. Proc., § 473, subd. (d) ["court ... may, on motion of either party after notice to the other party, set aside any void judgment or order"].) They further seek to quash the service of the summons upon them.

A court does not gain jurisdiction over a defendant by mere notice but by proper service of the summons and complaint. (*Independent Bankers Trust Co. v. Superior Court* (1982) 138 Cal.App.3d 238, 241.) Proper service means "compliance with the statutes governing service of process," and it is "essential to establish that court's personal jurisdiction over a defendant." (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1439.) "Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (*Id.*, at p. 1444.)

North Cal and Mediano contend that the Court lacked personal jurisdiction over them because the purported substituted service of process on them was defective in two respects: (1) the copies of the summonses served did not specify who in particular was being served nor the capacity in which the person was being served and (2) the papers were not mailed to the business address of North Cal's agent for service of process.

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Though North Cal and Medino do not provide any authority for the proposition, a summons in an action against a corporation indeed must notify the person being served in what capacity they are being served, else no default may be taken. (Code Civ. Proc., § 412.30.) However, the only evidence offered in support of their first argument—that the copies of the summons served on North Cal and Mediano were not completely filled out—is an unauthenticated and undescribed copy of the summons attached as an exhibit to the motion with an annotation indicating the purported deficiency. (Apr. 9, 2026 Motion, p. 7.) However, it seems this cannot be either of the copies actually served on North Cal and Mediano—both North Cal and Mediano disclaim having ever received a summons in this action. (*Id.*, at p. 3, ¶ 8, p. 4, ¶ 7.) Instead, it appears to be a copy of the original summons from the Court’s file. The bottom portion of the original summons is always left blank by default. It is to be filled in by the person effecting service at the time of service.

Furthermore, the proofs of service of the summons indicate the required notice on the summonses were in fact filled out upon service. (See May 20, 2025 Proof of Service (North Cal), § 6; May 20, 2025 Proof of Service (Mediano), § 6.) Because North Cal and Mediano disclaim having received these summonses, they have no personal knowledge of the content of the summonses served and cannot rebut these proofs. Accordingly, their first argument is without merit.

Their second argument, however, despite consisting of single sentence in their memorandum of points and authorities, is more sound at least in relation to the service on North Cal. Plaintiff Jon Romero attempted to serve North Cal via its agent designated for service of process, relying on Code of Civil Procedure section 416.10, which so permits service upon the agent. (See May 20, 2025 Proof of Service (North Cal), § 6.) He did so despite the fact that North Cal had been dissolved half a year earlier. (Motion, p. 19; see Code Civ. Proc., § 416.20 [governing who may be served on behalf of a defunct corporation].) North Cal nevertheless does not dispute that the designated agent was a proper person to receive service on its behalf.

However, to properly serve North Cal’s designated agent by substitute service, Romero was required to “leav[e] a copy of the summons and complaint during usual office hours in the [agent’s] office” and “thereafter mail[] a copy of the summons and complaint by first-class mail, postage prepaid to the [agent] at the place where a copy of the summons and complaint were left.” (Code Civ. Proc., § 415.20, subd. (a).) North Cal’s agent’s office has been and continues to be located at 1420 Riviera Avenue in Banning, California, since 2020. (Motion, p. 2 ¶¶ 2–3, 6–7, p. 18.) Thus, the stated service purportedly upon the designated agent at 7 Wilms Avenue in South San Francisco was improper.

Romero argues that the South San Francisco address was ‘properly connected’ to North Cal and not an ‘unrelated’ address because it was North Cal’s place of business. This argument is frivolous in relation to the type of service claimed—the statutes are clear that if the designated agent is to be served, then service is to be made at the agent’s office, not the address of the corporation. While the statutes providing for substitute service in lieu of personal delivery are to be “liberally construed to effectuate service and uphold jurisdiction if actual notice has been received by the defendant” (*Bein v. Brechtel–Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387, 1392), service upon an address other than the designated agent’s does not substantially comply with the statute requiring service at the agent’s office. A ‘connected’ or ‘related’ address does not qualify. Accordingly, the Court never obtained personal jurisdiction over North Cal, the entry of North’s Cal default and the default judgment against it are void, and service of the summons upon North Cal must be quashed.

While Dennis Mediano’s declaration states that he never received the summons or complaint, the motion contains no argument or legal authority that relief should be granted as to him for lack of notice or for

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surprise. Accordingly, the Court is not considering such grounds. Even if it did, the evidence is insufficient to grant such relief. There is not a sufficient showing that service was invalid. While substituted service must be on a member of an individual's household, there is no evidence that the young male with whom the papers were left is not part of Dennis Mediano's household, and in fact the moving parties indicate he was. The claim that Dennis Mediano never saw the subsequent mailings, does not render the original service ineffective. Finally, for lack of notice grounds, Dennis Mediano is required to show that he was not avoiding service, which his declaration does not address or establish.

For the foregoing reasons, the motion is GRANTED with respect to North Cal and DENIED with respect to Mediano.

The request for sanctions is DENIED. Among other numerous defects, the motion does not state—either in the notice or elsewhere—what type of sanctions (though presumably monetary) are sought nor against whom they are sought nor on what legal basis they may be imposed. Accordingly, the imposition of sanctions would not satisfy due process. (See, e.g., *Barrientos v. City of Los Angeles* (1994) 30 Cal.App.4th 63, 70–71.)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

25-CIV-05547      TRIPATINDER CHOWDHRY VS. BRADLEY J. LUCAS, ET AL

TRIPATINDER CHOWDHRY  
BRADLEY J. LUCAS

DAVID G. FINKELSTEIN  
ELIZABETH M. PAPPY

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Defendants' (Amended) Demurrer to Plaintiff's First Amended Complaint

**TENTATIVE RULING:**

For the reasons stated below, Defendants Bradley Lucas and Melanie Lucas ("the Lucas defendants") demurrer to Plaintiff Tripatinder Chowdhry's ("Plaintiff" or "Mr. Chowdhry") Jan. 27, 2026 First Amended Complaint ("FAC") is SUSTAINED-in-part and OVERRULED-in-part. (Code Civ. Proc. § 430.10(c), (e).)

Defendants' Jan. 27, 2026 Request for Judicial Notice (RJN) is GRANTED. (Evid. Code § 452(c)-(d).) As to court-filed and recorded documents, the Court takes judicial notice of their contents and filing/recording dates, but does not take judicial notice of the truth of statements/allegations in the documents.

*Defective meet and confer.*

This Court previous found that the Lucas defendants failed to properly meet and confer before filing their previous demurrer back in 2025. (See Dec. 21, 2025 Minute Order.) Defendants once again have not complied with Code Civ. Proc. § 430.41.

The Jan. 27, 2026 declaration of defendants' counsel Rob Keitamo states that on Jan. 11, 2026, the attorneys exchanged a *draft* FAC, then spoke by phone about the draft FAC on Dec. 15, 2025, and that on Dec. 26, 2026, Plaintiff filed a FAC that differed from the version the attorneys had previously discussed on the telephone. On Jan. 7, 2026, defendants' counsel sent to Plaintiff's counsel an email stating that defendants intended to demur to the FAC "unless [Plaintiff's counsel] wished to meet and confer further." On Jan. 8, 2026, Plaintiff's counsel responded by email, stating there was nothing further to discuss ..." (Jan. 27, 2026 Keitamo Decl., ¶¶ 3-7.)

The Keitamo declaration indicates that (1) the attorneys never spoke to each other regarding the version of the FAC that Plaintiff filed on Dec. 26, 2026; and (2) they never spoke about the demurrer after the FAC was actually filed. § 430.41 requires the attorneys to speak, or at least, to make a genuine attempt to speak to each other, and discuss the planned to demurrer to the pleading, *after* it is filed. The fact that the Dec. 26, 2026 FAC differed from the prior version (that was exchanged on Dec. 11) was even more reason that the attorneys should have spoken

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